

Court No. - 27

Case :- WRIT - C No. - 19857 of 2003

Petitioner :- M/S I.G. Shoes Pvt. Ltd.

Respondent :- U.P. Electricity Corporation Ltd. & Others

Petitioner Counsel :- Manu Khare,B.N. Singh,H.N. Singh

Respondent Counsel :- Ranjit Saxena,S.C.

Hon'ble Pradeep Kumar Singh Baghel,J.

The case is adjourned, on the request of Mridul Tripathi learned counsel for the petitioner.

Order Date :- 6.1.2012

ssm

Court No. - 27

Case :- WRIT - C No. - 19857 of 2003

Petitioner :- M/S I.G. Shoes Pvt. Ltd.

Respondent :- U.P. Electricity Corporation Ltd. & Others

Petitioner Counsel :- Manu Khare,B.N. Singh,H.N. Singh

Respondent Counsel :- Ranjit Saxena,S.C.

Hon'ble Abhinava Upadhya,J.

Passed over on the request made on behalf of Sri H.N.Singh, counsel for the petitioner.

Order Date :- 13.1.2012

VPC

Court No. - 27

Case :- WRIT - C No. - 19857 of 2003

Petitioner :- M/S I.G. Shoes Pvt. Ltd.

Respondent :- U.P. Electricity Corporation Ltd. & Others

Petitioner Counsel :- Manu Khare,B.N. Singh,H.N. Singh

Respondent Counsel :- Ranjit Saxena,S.C.

Hon'ble Abhinava Upadhya,J.

Passed over on the request made on behalf of Sri H.N.Singh, counsel for the petitioner.

Order Date :- 20.1.2012

VPC

Court No. - 27

Case :- WRIT - C No. - 19857 of 2003

Petitioner :- M/S I.G. Shoes Pvt. Ltd.

Respondent :- U.P. Electricity Corporation Ltd. & Others

Petitioner Counsel :- Manu Khare,B.N. Singh,H.N. Singh

Respondent Counsel :- Ranjit Saxena,S.C.

Hon'ble Abhinava Upadhya,J.

On request being made on behalf of Sri H.N.Singh, learned counsel appearing for the petitioner, the case is passed over for the day.

Order Date :- 1.2.2012

SKM

Court No. - 27

Case :- WRIT - C No. - 19857 of 2003

Petitioner :- M/S I.G. Shoes Pvt. Ltd.

Respondent :- U.P. Electricity Corporation Ltd. & Others

Petitioner Counsel :- Manu Khare, B.N. Singh, H.N. Singh

Respondent Counsel :- Ranjit Saxena, S.C.

Hon'ble Abhinava Upadhya, J.

(Order on the impleadment application dated 11.12.2005)

Heard.

Learned counsel for the respondents has no objection if the impleadment application is allowed.

The application is, accordingly, allowed.

The petitioner may make necessary incorporation in the array of the parties to the writ petition within a week.

Order Date :- 8.2.2012

SKM

Court No. - 27

Case :- WRIT - C No. - 19857 of 2003

Petitioner :- M/S I.G. Shoes Pvt. Ltd.

Respondent :- U.P. Electricity Corporation Ltd. & Others

Petitioner Counsel :- Manu Khare, B.N. Singh, H.N. Singh

Respondent Counsel :- Ranjit Saxena, S.C.

Hon'ble Abhinava Upadhya, J.

(Order on the amendment application dated 11.12.2005)

Heard.

Learned counsel for the respondents has no objection if the amendment application is allowed.

The application is, accordingly, allowed.

The petitioner is permitted to make necessary incorporation in the array of the parties to the writ petition within a week.

List the petition thereafter.

Order Date :- 8.2.2012

SKM

Court No. - 27

Case :- WRIT - C No. - 19857 of 2003

Petitioner :- M/S I.G. Shoes Pvt. Ltd.

Respondent :- U.P. Electricity Corporation Ltd. & Others

Petitioner Counsel :- Manu Khare,B.N. Singh,H.N. Singh

Respondent Counsel :- Ranjit Saxena,S.C.

Hon'ble Abhinava Upadhya,J.

As prayed by Shri H.N.Singh, learned counsel appearing for the petitioner, one week further time is allowed for making necessary amendment.

List thereafter.

Order Date :- 22.2.2012

SKM

Court No. - 26

Case :- WRIT - C No. - 19857 of 2003

Petitioner :- M/S I.G. Shoes Pvt. Ltd.

Respondent :- U.P. Electricity Corporation Ltd. & Others

Petitioner Counsel :- Manu Khare,B.N. Singh,H.N. Singh

Respondent Counsel :- Ranjit Saxena,S.C.

Hon'ble Sunil Hali,J.

As prayed put up this case on 13.4.2012.

Order Date :- 11.4.2012

RKS/

Court No. - 26

Case :- WRIT - C No. - 19857 of 2003

Petitioner :- M/S I.G. Shoes Pvt. Ltd.

Respondent :- U.P. Electricity Corporation Ltd. & Others

Petitioner Counsel :- Manu Khare, B.N. Singh, H.N. Singh

Respondent Counsel :- Ranjit Saxena, S.C.

Hon'ble Sunil Hali, J.

Await the decision in Civil Misc. Writ Petition Nos. 63196 of 2005 and 11302 of 2006.

List this petitioner after decision in the aforementioned writ petitions pending before the Division Bench.

(Sunil Hali, J.)

Order Date :- 13.4.2012

SU.

Court No. - 32

Case :- WRIT - C No. - 19857 of 2003

Petitioner :- M/S I.G. Shoes Pvt. Ltd.

Respondent :- U.P. Electricity Corporation Ltd. & Others

Counsel for Petitioner :- Manu Khare, B.N. Singh, H.N. Singh

Counsel for Respondent :- Ranjit Saxena, Dr. S.K. Yadav, Mridul Tripathi, S.C.

Hon'ble Rajes Kumar, J.

Hon'ble Shashi Kant, J.

Learned counsel for the petitioner is directed to provide second Judge copy of the petition, counter affidavit and rejoinder affidavit.

List after three weeks.

Order Date :- 17.11.2014

OP

Court No. - 34

Case :- WRIT - C No. - 19857 of 2003

Petitioner :- M/S I.G. Shoes Pvt. Ltd.

Respondent :- U.P. Electricity Corporation Ltd. & Others

Counsel for Petitioner :- Manu Khare, B.N. Singh, H.N. Singh

Counsel for Respondent :- Ranjit Saxena, Dr. S.K. Yadav, Mridul Tripathi, S.C.

Hon'ble Sudhir Agarwal, J.

Hon'ble Dr. Kaushal Jayendra Thaker, J.

1. Heard Sri S.F.A. Naqvi, learned counsel for petitioner and Dr. S.K. Yadav, learned counsel for respondents and perused the record.

2. This writ petition is directed against bill dated 24.10.2002 and order dated 24.3.2003 (Annexure 27 and 32 of writ petition). Sri Naqvi confined his argument only to the extent of assessment of Rs.18,61,585/- demanded on account of allegation of theft of electricity pursuant to raid conducted on 28.8.2002.

3. It is contended that before making assessment, no notice was given to the petitioner. No speaking order was passed and Appellate Committee's order was passed without looking into all aspects. It only says that assessment was correct. Even order of Appellate Committee is non-speaking.

4. Dr. S.K. Yadav, learned counsel for respondents could not dispute the facts that assessment and appellate orders are virtually non speaking.

5. A Division Bench of this Court in **Ashok Kumar son of Dindayal and others vs. State of U.P. and others, 2008(6) ADJ 660** has examined relevant provisions of Electricity Supply Code and it has categorically held that proper notice has to be given to the Consumer and thereafter Assessing Authority i.e Executive Engineer will have to pass a speaking and reasoned order. Similarly, if order is passed against Consumer, and he files appeal, Appellate Committee is also under an obligation to pass a reasoned order.

6. In the present case, Executive Engineer i.e. Assessing Authority has neither served a proper notice as observed in **Ashok Kumar(supra)** nor made assessment by speaking order as per law laid down in the aforesaid judgment. Further Appellate Committee has simply reiterated provisions of

Uttar Pradesh Electricity Supply Code, 2002 and has not discussed ground taken by appellant. While referring to grounds, it has simply observed that contention of appellant is not correct.

7. In view thereof, neither assessment order nor Appellate Committee's order, in our view, is sustainable particularly, in view of law laid down in **Ashok Kumar(supra)**. Accordingly, writ petition is partly allowed. Impugned orders are hereby set aside. Matter is remitted to Assessing Authority to proceed in the matter afresh and pass assessment order after giving proper show cause notice and opportunity of hearing to petitioner.

Order Date :- 29.11.2016

P.P.